

23STCV13712 23STCV13712

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 23STCV13712 Hearing Date: August 12, 2026 Dept: 510

No.

12 - Alla Anatolyevna Zorikova v. Victoria Murcia, et al.

Plaintiff's

Motion for Sanctions Against Defendant Hidalgo

Plaintiff

Alla Anatolyevna Zorikova moves for evidentiary sanctions against Defendant Luis Hidalgo for failure to comply with a court order.

Plaintiff

argues that Defendant failed to comply with the Court's May 20, 2026 ruling that ordered Hidalgo to "make the dogs available for observation by Plaintiff, one at a time, within 60 days of electronic service by the Clerk of this Minute Order." (5/20/26 Minute Order.) The Court also directed the parties to meet and confer regarding "a mutually agreeable location, date and time." (Ibid.) Plaintiff argues that she has proposed five different available dates, all of which Defendant did not accept. Plaintiff argues that this conduct constitutes willful disobedience of a court order subject to evidentiary sanctions. Plaintiff does not specify what kind of evidentiary sanctions she seeks.

In

opposition, Defendant argues that he complied with the court order and offered Plaintiff four available dates, all of which Plaintiff rejected. Defendant contends that Plaintiff insists on unilaterally setting a date and time that works for her, instead of cooperating with counsel and Defendant regarding their availability.

The

Court has reviewed the file and the attached communications between the parties. Both parties are at fault for failing to comply with the Court's May 20th order. Plaintiff did not cooperate in good faith with Defense counsel to meet and confer to find a "mutually agreeable" date and time for the dog inspection. In turn, Defense counsel did not act with due diligence in finding one 30-minute period in which Hidalgo could provide the dogs for inspection within the 60-day timeframe allotted. Defendant's offered dates fell within a 12-day span of time. This case was initiated in 2023. Trial is now approximately one month away, and the dogs have still not been inspected.

Given

the circumstances, evidentiary sanctions are not warranted at this time. However, the parties should be prepared at the hearing to set a date and time certain within one week for the inspection that the Court ordered on May 20, 2026. If the parties cannot agree on a date and time for the inspection prior to the hearing, the Court will unilaterally set a date and time at the hearing. Should the inspection still not occur, the Court will consider giving CACI jury instruction No. 204 at trial if the evidence supports this instruction. CACI No. 204, based on Evidence Code section 413, states, "You may consider whether one party intentionally concealed or destroyed evidence. If you decide that a party did so, you may decide that the evidence would have been unfavorable to that party."

To

the extent that Plaintiff requests default judgment or a contempt order, as suggested in the concluding paragraph of her motion, the Court declines to impose those severe consequences at this time.

The

Court reminds the parties that under Local Rule 3.26, the Court has adopted as recommendations the Los Angeles County Bar Association's Guidelines for Civility. The Court expects all parties and counsel to abide by those guidelines. A copy can be found in Appendix 3.A. to the Local Rules.

Disposition

Plaintiff

Alla Anatolyevna Zorikova's motion for sanctions against Defendant Hidalgo is denied without prejudice.

Plaintiff

and Defendant Hidalgo are ordered to produce the dogs for inspection and otherwise comply with the Court's May 20, 2026 order on August __, 2026 at _____, the date and time determined at the hearing.